

Stereo. H C J D A-38.
JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.10049 of 2026

Sidra Ameen
Versus
Judge Family Court, Chunian District Kasur & another

J U D G M E N T

Date of hearing: 09.06.2026.
Petitioner by: Mr. Farooq Ahmad Malik, Advocate.
Respondent No.2 by: Mr. Ali Raza Wahga, Advocate.

MUHAMMAD SAJID MEHMOOD SETHI, J.- Through this Constitutional Petition, the petitioner calls in question the order dated 28.07.2025, passed by learned Judge Family Court / Executing Court, Chunian, whereby the judgment debtor was sentenced to civil imprisonment for a period of one year with a direction that the said imprisonment shall run retrospectively from his first date of arrest i.e. 18.02.2025, and the order dated 13.02.2026, whereby the petitioner's review application challenging the said retrospective operation was dismissed on the grounds of delay and the limited scope of review in family matters.

BACKGROUND FACTS

2. In order to appreciate the legal controversies arising in this petition, it is necessary to briefly set out the relevant factual matrix. The petitioner / decree holder filed a suit for recovery of maintenance allowance before the learned Family Court at Kasur on 03.09.2022. The suit, to the extent of maintenance allowance for the minor children (Plaintiffs No.2 to 4), was decreed under Section 17-A of the West Pakistan Family Courts Act, 1964 on 11.02.2023. The remaining claims were decreed on 25.10.2024. Separately, the petitioner filed another suit for recovery of dowry articles before the Family Court at Tehsil Chunian on 04.10.2023, which was decreed on 21.10.2024. Execution proceedings in

respect of the maintenance decree were initiated, and pursuant to nonbailable warrants of arrest, the respondent No.2 / judgment debtor was first taken into custody on 15.02.2025 in connection with the maintenance decree. A show cause notice was issued on 18.02.2025, upon which the judgment debtor expressed his inability to satisfy the decretal amount, whereupon he was sent to civil imprisonment. Execution proceedings in respect of the dowry articles decree were filed on 07.03.2025, and thereafter all decrees were consolidated and transferred to the Family Court at Tehsil Chunian by order of the learned District & Sessions Judge, Kasur, on 07.05.2025. On 25.06.2025, the Executing Court issued a show cause notice to the judgment debtor for payment of the decretal amount. Upon the judgment debtor expressing his continued inability and unwillingness to pay, the Executing Court, vide the impugned order dated 28.07.2025, sentenced him to civil imprisonment for one year, directing that the said imprisonment shall run from 18.02.2025, i.e., retrospectively from the date of his first arrest in the maintenance execution proceedings. The petitioner, being aggrieved by the retrospective direction, filed a review application on 26.01.2026, which was dismissed vide the second impugned order dated 13.02.2026. Hence, the instant petition.

ISSUES FOR DETERMINATION

3. The following questions of law fall for determination in the present constitutional petition:

- (I) Whether, in the facts and circumstances of the case, the learned Executing Court was justified in taking into account the period of detention already undergone by respondent No.2 while computing the duration of civil imprisonment ordered vide order dated 28.07.2025?
- (II) Whether detention undergone by a judgment-debtor in execution proceedings pertaining to decrees subsequently consolidated before one Court can

lawfully be considered for purposes of computation of civil imprisonment?

(III) Whether the adjustment of the period already undergone by a judgment-debtor in execution proceedings is legally impermissible merely because Section 382-B, Cr.P.C. is not directly applicable to civil proceedings?

(IV) Whether the learned Executing Court committed any jurisdictional illegality or material irregularity in dismissing the review application vide order dated 13.02.2026?

LEGAL FRAMEWORK GOVERNING CIVIL IMPRISONMENT IN EXECUTION

4. Before examining the legality of the impugned orders, it is apposite to set out the relevant legal framework. The West Pakistan Family Courts Act, 1964 (hereinafter 'the Act') is a special legislation providing a self-contained code for the adjudication and enforcement of family disputes. Section 13 of the Act confers upon the Family Court all the powers of a Civil Court for the purpose of execution of its decrees. In the exercise of these powers, the provisions of Order XXI of the Code of Civil Procedure, 1908 (hereinafter 'CPC') are applicable. Order XXI, Rule 37 CPC provides that where a decree is for the payment of money, the decree holder may apply to the Court to issue a notice to the judgment debtor to show cause why he should not be committed to civil prison. Rule 40 of Order XXI provides that, upon the judgment debtor failing to show sufficient cause, the Court may make an order for his detention in civil prison. Section 55 CPC provides that the period of civil imprisonment shall not exceed one year. However, the period of one year prescribed therein is the maximum limit of civil imprisonment, and it is within the discretion of the Executing Court to determine the actual period of detention. Reliance is placed on United Distributors (Pvt.) Ltd. v. Madina Traders (1999 CLC 1567).

**ISSUES NO.I &II: WHETHER PRIOR DETENTION
COULD BE TAKEN INTO ACCOUNT**

5. The principal grievance of the petitioner is directed against that part of the order dated 28.07.2025 whereby the learned Executing Court directed that the period of civil imprisonment would be reckoned from 18.02.2025, i.e., the date from which the judgment-debtor had already remained in custody in execution proceedings. The contention advanced is that civil imprisonment can commence only from the date of the formal order of detention and that no period already undergone can be adjusted towards the subsequent order of imprisonment.

6. The contention, though attractive at first blush, cannot be accepted in its absolute form. Civil imprisonment under the law of execution is not punitive in character; rather, it is a coercive process devised to secure compliance with a decree. The purpose is not to inflict punishment upon the judgment-debtor but to compel satisfaction of the decree and to ensure obedience to the orders of the Court. Reliance is placed upon Government of Khyber Pakhtunkhwa through Secretary Home, Peshawar and others v. Attiq Ullah Khan (2026 SCMR 521), Cecil Hicks, District Attorney for County of Orange, California, acting on Behalf of Alta Sue Feiock v. Phillip William Feiock, (485 U.S. 624), United States v. United Mine Workers of America (330 U.S. 258) and Salvatore Shillitani v. United States of America (384 U.S. 364). Therefore, while examining the legality of detention, the Court is required to look at the substance of the custody already undergone and not merely at the form in which the subsequent order has been expressed.

7. The record reflects that the respondent No.2 had already been taken into custody in execution proceedings arising out of the decrees obtained by the petitioner and had continuously remained under detention. Subsequently, the execution proceedings were consolidated and transferred to one Court for purposes of effective

execution. Once the proceedings stood consolidated and the custody of the judgment-debtor remained referable to the enforcement of the decretal liabilities in favour of the same decree-holder, the Executing Court was competent to take into consideration the period already undergone while determining the duration of detention permissible under law.

8. The argument that every execution application must be treated in complete isolation and that no account can be taken of detention already suffered in connected execution proceedings does not accord with the practical realities of execution jurisdiction. The law does not contemplate repeated and overlapping periods of civil detention so as to convert a coercive mechanism into a punitive exercise. Where the judgment-debtor has continuously remained in custody for non-satisfaction of decrees which subsequently become the subject matter of consolidated execution proceedings, the Executing Court is not precluded from giving credit for the period already undergone. This view finds support from *Shafqat Ibrar v. Judge Family Court and another* (2014 MLD 1809), where two execution petitions were pending against the judgment-debtor. In the first execution petition, he was ordered to undergo civil imprisonment for one year, while no order of detention was passed in the second. The question before the Court was whether the period of civil imprisonment already undergone in the first execution could be reckoned in the second execution petition. The Court held that the period of detention is to be construed cumulatively in both execution petitions.

ISSUE III: EFFECT OF SECTION 382-B Cr.P.C

9. It is correct that section 382-B, Cr.P.C. is a provision contained in criminal law and, strictly speaking, does not govern civil imprisonment ordered in execution proceedings. However, the controversy does not require formal application of section 382-

B, Cr.P.C. The question is not whether criminal law provisions are directly attracted; rather, the question is whether a Court executing a decree may take into account the period during which the judgment-debtor has already remained under lawful detention in execution proceedings relating to the same decretal liability. The answer to this question flows not from section 382-B, Cr.P.C. itself but from the nature and object of civil detention and the powers of the executing Court while regulating the period of such detention.

10. Therefore, even if section 382-B, Cr.P.C. is not directly applicable, the adjustment of detention already undergone cannot be declared illegal merely because the principle finds some resemblance to the concept embodied in that provision. What is relevant is whether the judgment-debtor had already remained in custody in execution proceedings connected with enforcement of the decrees and whether the Executing Court exercised its jurisdiction in a manner consistent with the object of execution law. The record demonstrates that the learned Executing Court exercised its discretion judiciously and within the bounds of law while taking into account the period of detention already undergone by the judgment-debtor.

ISSUE IV: ORDER DATED 13.02.2026 DISMISSING THE REVIEW APPLICATION

11. The review application filed by the petitioner challenged the legality of the retrospective computation of civil imprisonment. The learned Executing Court dismissed the application primarily on the grounds of delay and the limited scope of review in family matters. Although the order dated 13.02.2026 is not as elaborate as it could have been and does not independently discuss the legal controversy in considerable detail, the mere brevity of reasoning is not sufficient to invalidate the order where the substantive issue has otherwise been found to be devoid of merit. Since the principal challenge raised by the petitioner regarding computation of

detention has been independently examined by this Court and found to be unsustainable, no prejudice can be said to have been caused by the manner in which the review application was disposed of. Consequently, the order dated 13.02.2026 does not call for interference in constitutional jurisdiction.

CONCLUSION

12. For the reasons recorded above, this Court finds that the learned Executing Court committed no illegality, material irregularity, or jurisdictional defect in taking into account the period of detention already undergone by respondent No.2 while computing the duration of civil imprisonment. Consequently, the petitioner's challenge to the impugned orders on the ground that retrospective benefit was unlawfully extended to the judgment-debtor is without merit. Learned counsel for the petitioner has been unable to point out any infirmity in the impugned orders warranting interference by this Court in exercise of its constitutional jurisdiction.

13. Consequently, this Constitutional Petition, being devoid of merit, is **dismissed**. No order as to costs.

(Muhammad Sajid Mehmood Sethi)
Judge

APPROVED FOR REPORTING

Judge

Sultan